

9:00 6-8	25CV467015	Dmitri Dolgov, et.al. vs. Jerry Kwok	Plaintiff petitions this court to compel discovery of Defendant Jerry Kwok. Plaintiff seeks information of co-defendant Daisy Kwok. Daisy Kwok is Defendant Jerry Kwok's daughter and personal service was accepted on her behalf. Plaintiff's petition is GRANTED. Plaintiff requested information of defendant Jerry Kwok's contact information regarding the financial institutions he is associated with. Plaintiff's petition is GRANTED. Plaintiff requested responses from Defendant Jerry Kwok to be translated into English. Plaintiff's petition is GRANTED. Therefore, Plaintiff's petition to compel discovery of Defendant Jerry Kwok of Special Interrogatories Set One, Nos. 8, 21, and 22 and form interrogatories Set One, Nos. 2, 7, and 12.1 are GRANTED. Plaintiff's motion for \$4,200 in monetary damages is GRANTED. Plaintiff petitions this court to compel discovery of Pinewood Capital. This court finds that identity of financial institutions are not inherently private. Plaintiff's petition to compel discovery requested in Special Interrogatories Nos. 27 and 37 are GRANTED. Plaintiff requests contact information of all members and employees. This court finds the request to be overbroad—the privacy interests of Pinewood Capital members and employees outweigh the relevant information sought by Plaintiff. Plaintiff's petition to compel discovery of Special Interrogatories Nos. 18, 19, and 21 are DENIED. Plaintiff's petition to compel management and ownership contact information is relevant and outweighs privacy interests. Plaintiff's petition to compel discovery of Special Interrogatories Nos. 20, 44, 45, 46, and 47 are GRANTED. Monetary sanctions are DENIED. Plaintiff petitions this court to compel discovery of Pacific Realty. Plaintiff request contact information related to financial institutions used by Pacific Realty. Such information is not protected by a company's privacy interests. Plaintiff's petition to compel discovery of Special Interrogatories Nos. 70, 82, and 103 are GRANTED. This court finds that Defendant Pacific Realty's responses to Special Interrogatories Nos. 24-27 are sufficient. Plaintiff's petition to compel discovery of Special Interrogatories Nos. 24-27 are DENIED. Defendant seeks leave to amend answer to change Defendants answer to Form Interrogatory 326.1, Request for Admission No. 8 from DENY to ADMIT. Defendant's petition is GRANTED. Plaintiff petitions this court to compel further response to Form Interrogatory 326.1, Request for Admission No. 9. Defendant fails to identify documents, provide contact information, or specific facts to support its answer. Plaintiff's petition to compel further discovery for Form Interrogatory 326.1, RFA No. 9 is GRANTED. Monetary sanctions are DENIED.
9:00 9	25CV478545	Thien Duong vs. No. 11 Tattoo Studio	Plaintiff moves this court for leave to file a second amended complaint. No opposition was filed by Defendant. Motion for leave to amend and file a second amended complaint within 30 calendar days of the issuance of order is GRANTED.
9:00 10-11	26CV484107	Mezzetti Financial Services vs. New Montrachet	Court will hear oral arguments on the case. Court will take the case under submission.

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Calendar Line 1

Case Name: *Hochhauser, et al. v. Boomgaarden, et al.*

Case No.: 23CV416550

After full consideration of the evidence, the separate statements submitted by the parties, and the authorities submitted by each party, the court makes the following rulings:

According to the allegations of the third amended complaint (“TAC”), on January 26, 2022, plaintiffs Jan Hochhauser and Matthew Huerta’s (collectively, “Plaintiffs”) predecessor-in-interest William Brooks (“Brooks”) and Jack Schneider entered into an agreement with defendant Cheryl F. Boomgaarden (“Defendant”) and nonparty Dale E. Boomgaarden to purchase the real properties located at 7747 Monterey Street and 7740 Egleberry Street in Gilroy in an agreement entitled “Commercial Purchase Agreement and Joint Escrow Instructions.” (TAC, ¶¶ 4-5.) Subsequent to the execution of the purchase agreement, Dale E. Boomgaarden passed away, leaving Cheryl F. Boomgaarden as the sole trustee of the Boomgaarden Family Trust and the sole seller under the purchase agreement and the sole owner of the subject property. (See FAC, ¶ 6.) While the purchase agreement identifies Brooks as the buyer, Defendant was informed that Plaintiffs were designated as additional buyers of the subject property, and Defendant acknowledged and agreed with such designation of the buyers. (See FAC, ¶ 7.) Brooks also entered into an assignment agreement with Brooks for the subject property. (*Id.*) Plaintiffs deposited \$130,000 into escrow with First American Title Company (“FATC”): a deposit of \$30,000 pursuant to paragraph 3.D(1) of the purchase agreement and another deposit of \$100,000 pursuant to the addendum to the purchase agreement. (See FAC, ¶ 10.) The terms of the addendum to the purchase agreement require Plaintiffs to provide that additional \$100,000 deposit within one year (365 days after the signing of the purchase agreement) for a six-month option, which Plaintiffs did by notifying Defendant of the exercise of that option and depositing the \$100,000 with FATC. (See FAC, ¶ 11.) While escrow was pending, Defendant wrongfully insisted FATC to not proceed with escrow and wrongfully claimed that Defendant was entitled to cancel escrow and the purchase agreement, and exact a severe forfeiture by Plaintiffs, despite Plaintiffs’ performance pursuant to the purchase agreement. (See FAC, ¶ 12.) Defendant refused to proceed with the escrow despite multiple requests by Plaintiffs, and continue to refuse to perform pursuant to the purchase agreement. (See FAC, ¶¶ 13-14.)

On December 26, 2024, Plaintiffs filed the TAC against defendant Cheryl F. Boomgaarden, trustee of the Boomgaarden Family Trust, asserting causes of action for:

- 1) Petition to compel arbitration;
- 2) Breach of contract;
- 3) Breach of the implied covenant of good faith and fair dealing; and,
- 4) Fraud—concealment.